Showing contexts for: **divorce petition** in Arti Mehta vs The State Of Madhya Pradesh on 25 May, 2026

Context size: Small | Current | Large | Larger

5. Being aggrieved by the refusal of the High Court to quash the aforesaid criminal proceedings pending before the concerned Magistrates, the present appeals have been preferred.

6. The gravamen of the case set up by the appellants in both the appeals is that they have been falsely implicated merely on account of being relatives of the husband and that the allegations levelled against them are wholly omnibus, vague and bereft of any specific overt act attributed to them, thus, incapable of being fastened with criminal liability under Section 498A IPC or the provisions of the Dowry Act and the DV Act, which unfortunately, the High Court had failed to appreciate. It has further been contended that the ↟FIR is manifestly retaliatory in nature, having been lodged immediately after the husband instituted **divorce** proceedings under Section 9 of the Hindu Marriage Act, 1955 (for short "HMA"). Learned counsel for the appellants also drew attention to the pleadings in the **divorce petition** filed by the Respondent No.2 herself, wherein she admitted that she was residing with her husband in the government quarters at Sheopur, thereby contradicting the allegations in the FIR regarding residing with the in-laws at Shivpuri. It was thus submitted that neither any domestic relationship nor any shared household within the meaning of Sections 2(f) and 2(s) of the DV Act has been established qua the appellants, who were residing separately.

11. On 06.04.2023, Judicial Magistrate First Class, Guna, upon considering the complaint filed by Respondent No.2 under Section 12 of the DV Act, took cognisance of the allegations and initiated proceedings in D.V. Complaint No. 1752 of 2023 against the husband as well as the present appellants.

12. At this stage, it may be apposite to note that the allegations between the parties are not one-sided and that ↟both sides have traded serious allegations against each other arising out of matrimonial discord. Prior to the institution of the aforesaid criminal proceedings by the complainant, the husband had instituted proceedings under Section 9 of the Hindu Marriage Act, 1955, being RCS HM No. 12 of 2023, before the Family Court seeking restitution of conjugal rights. Subsequently, the complainant herself instituted **Divorce Petition** No. RCS HM/156/2023 before the Court of the Principal Judge, Family Court, Guna, Madhya Pradesh, alleging cruelty, harassment and adulterous conduct on the part of the husband. The pleadings exchanged between the parties in the matrimonial proceedings indicate a deeply strained marital relationship and disclose several mutual allegations relating to cruelty, incompatibility and matrimonial discord. It has also been brought to the notice of this Court that during the pendency of the present proceedings, a decree of **divorce** has been granted by the competent Family Court, thereby dissolving the marriage between the husband and complainant.

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14. That after the applicant submitted the said application, first of all on 09.08.2022, when the applicant came to Guna from her home on Rakhi, from that date till today neither the non-applicant nor any family member has come to take the applicant. Thereafter, on 02.12.2022, an application for reconciliation was submitted by the applicant at the Counselling Centre, Guna. The said reconciliation talks failed, before this, on 11.01.2023, the non-applicant submitted an application to the Principal Judge, Family Court Shivpuri, District Shivpuri, under Section 9 of the HMA and on 10.04.2023, the non-applicant withdrew the said application and wants to file a **divorce petition** against the applicant. This proves that the non- applicant wants

divorce from the applicant. The non- applicant's behaviour was cruel towards the applicant. The non-applicant never gave the applicant the status of his wife. He did not even follow the marital relations. When the cause of action arose after 09.08.2022, on 10.04.2023, the non-applicant withdrew the application of Section 9 and demanded in the said ↟ application that the non-applicant wants to file a **divorce petition**."

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22. Significantly, even in the elaborate **divorce petition** subsequently filed by the complainant/wife, the allegations continue to remain substantially vague insofar as the present appellants are concerned. The detailed allegations of cruelty, harassment and mental trauma overwhelmingly revolve around the conduct of the husband at Sheopur, ↟where admittedly the complainant was residing with him in the government accommodation allotted to him. The complainant herself states in paragraph 2 of the **divorce petition** that "after some time of marriage, the non-applicant took the applicant to live in his government quarter in Sheopur." She further reiterates in paragraph 3 that during the second Karva Chauth, "the applicant and the non- applicant lived in the government quarters of Sheopur." These pleadings clearly indicate that the matrimonial residence of the parties was at Sheopur and not at Shivpuri, where the present appellants were residing.